

IN THE COUNTY COURT OF THE
TWELFTH JUDICIAL CIRCUIT, IN
AND FOR MANATEE COUNTY,
FLORIDA

CASE NO.: 2025-CC-000714-AX

COLONIAL MANOR MHC
HOLDINGS, LLC, d/b/a COLONIAL
MANOR MOBILE HOME PARK,

Plaintiff,

v.

SYLVIA HERNANDEZ AVALOS,
FRANK J. AVALOS, and ANY
UNKNOWN PARTY(s) IN
POSSESSION,

Defendants.

_____/

ANSWER AND AFFIRMATIVE DEFENSES TO PLAINTIFF'S COMPLAINT

COME NOW, the Defendants, SYLVIA HERNANDEZ AVALOS and FRANK J. AVALOS (hereinafter "Defendants"), by and through their undersigned counsel and pursuant to all applicable Fla. R. Civ. P., and hereby file this Answer and Affirmative Defenses to the Plaintiff's, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MANOR MOBILE HOME PARK (hereinafter "Plaintiff"), Complaint Seeking Possession and Damages, and states the following:

COUNT I
ACTION FOR POSSESSION

1. Admitted to the extent this Court purports this to be an action for removal of mobile home park lot tenants and possession of real property, further, Fla. Stat. § 723.061(1)(a).

2. Without knowledge, therefore denied.

3. Without knowledge, therefore denied.

4. Denied, further, Fla. Stat. § 723.031 speaks for itself.

5. Exhibit A speaks for itself.

6. Denied.

7. Admit.

8. Without knowledge, therefore denied.

9. Fla. Stat. §723 speaks for itself.

10. Exhibit A speaks for itself.

11. Without knowledge, therefore denied.

12. Denied.

13. Exhibit B speaks for itself.

14. Without knowledge, therefore denied.

15. Denied.

16. Denied.

17. Denied.

18. Denied.

19. Without knowledge, therefore denied.

20. Fla. Stat. §723.084 speaks for itself.

21. Denied.

COUNT II
ACTION FOR DAMAGES (RENTAL)

22. Admitted for purposes of jurisdiction, otherwise denied.

23. Defendants re-assert their answers contained in ¶ 1 through ¶ 21 above, as if fully set forth herein.

24. Exhibit A speaks for itself, otherwise denied.

25. Denied.

26. Denied.

AFFIRMATIVE DEFENSES

1. On or about October 7, 2024, Defendants were required to vacate 900 9th Ave. E, Lot #70, Palmetto, Florida 34221 (hereinafter "Subject Property") in an attempt to seek shelter from the effects of imminently approaching Hurricane Milton. Upon landfall, Hurricane Milton severely damaged the Subject Property. On or about October 26, 2024, the Federal Emergency Management Agency (hereinafter "FEMA") determined that the Subject Property was uninhabitable (See Exhibit "A").

2. On or about November 15, 2024, Defendants terminated the Lease Agreement, identified as Exhibit A to Plaintiff's Complaint, by sending by certified mail, a Notice of Lease Termination Due to Unsafe Living Conditions pursuant to Fla. Stat. § 83.63, which states, in pertinent part: "If the premises are damaged or destroyed other than by the wrongful or negligent acts of the tenant so that the enjoyment of the premises is substantially impaired, the tenant may terminate the rental agreement and

immediately vacate the premises... If the rental agreement is terminated, the landlord shall comply with s. 83.49(3)". Accordingly, the Plaintiff's relief requested in Count I and Count II above are improper, as the Lease Agreement sued upon has been lawfully terminated. (See Composite Exhibit "B"). Accordingly, Defendant contests the amount claimed due by Plaintiff, and requests a hearing for this Court to determine the same.

3. Upon receipt of Exhibit B, Plaintiff filed to comply with the requirements of Fla. Stat. § 83.49(3), as dictated by Fla. Stat. §83.63.

4. On or about December 31, 2024, Mark McCourt of Construction Classics, LLC, performed an inspection of the Subject Property to determine the extent of damages to the same, resulting from Hurricane Milton. Upon Mr. McCourt's inspection, it was determined that the Subject Property was still not in service, violating Fla. Stat. § 723.022 (See Exhibit "C").

5. On or about December 28, 2024, Defendants attempted to make payment of December rent. Upon accessing the rental portal, Plaintiff had also included January's rent into Defendant's account, which was not currently due, and rendered Defendants unable to make payment. Accordingly, Defendant contests the amount claimed due by Plaintiff, and requests a hearing for this Court to determine the same.

6. On or about January 3, 2025, the Plaintiff submitted an appeal to FEMA, for additional repair assistance. As of the date of this Answer and Affirmative Defenses, the Defendants' FEMA appeal is still pending (See Exhibit "D").

7. Defendants have repeatedly attempted to resolve this issue prior to this suit commencing, including, providing title of the mobile home to Plaintiff to resolve the

matter, selling the mobile home in question to “Brad”, a handyman of the Mobile Home Park, in which Plaintiff refused Brad to accept, etc. Defendants’ attempts to resolve this matter have been futile given Plaintiff’s unwillingness to do the same.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing document has been electronically filed via the Florida Court’s E-Filing Portal and electronically served on any and all registered participants on this 7th day of March, 2025.

Respectfully Submitted,

BERLIN PATTEN EBLING, PLLC
3700 South Tamiami Trail
Sarasota, Florida 34239
Tel: (941) 954-9991
Fax: (941) 954-9992

/s/ Tyler A. Dixon, Esq.

Tyler A. Dixon, Esq.
Florida Bar No.: 1038434
tdixon@berlinpatten.com
gcare@berlinpatten.com



FEMA

Deanne Criswell
Administrator
Federal Emergency Management Agency

Ron DeSantis
Governor
State of Florida

FEMA
P.O. Box 10055
Hyattsville, MD 20782-8055

Date: 10/26/2024

Disaster Number: 4834
FEMA Application Number:

Sylvia Avalos
900 9th Ave E Lot 70
Palmetto, FL 34221-5306

Sylvia Avalos:

FEMA has reviewed your application for disaster assistance.

This letter explains:

- What assistance your application is approved for.
- What assistance your application is not approved for.
- The additional steps you may take to get assistance.

ASSISTANCE APPROVEDYour application is **approved** for a total of _____

The U.S. Department of the Treasury will either mail you a check or deposit the funds into your account, based on the preference you selected.

Approved-- Money for Immediate Housing NeedsYour application has been **approved** for Displacement Assistance in the amount of _____

FEMA noted your home is not safe to live in or is inaccessible. This money is meant to help pay for costs for short-term living arrangements because of the disaster. You can use this money to help pay for hotels, motels, short-term rentals, costs related to staying with friends and family, or other short-term living options available to you.

If you are unable to return home and still need help with more housing assistance due to the disaster, please contact FEMA's helpline at 1-800-621-3362 for information on how to request additional assistance.

Approved- Money to Help Repair Your Home

Your application has been **approved** for _____ to help you with repairing damage to your home. FEMA's housing inspector verified your home is not safe to live in because of disaster caused damage. The amount of money you got is based on the damage FEMA's housing inspector saw. This money is meant to help you make your home safe, sanitary, and functional. It is not meant to fully restore your home to its pre-disaster condition.

Hazard Mitigation

This assistance may include money for specific repairs to your home that will reduce the amount of damage from future disasters. This is called hazard mitigation. If money for hazard mitigation is included in your Home Repair award, FEMA will send you a separate letter with more details.

Exhibit D-1

EXHIBIT B

Sylvia Avalos
900 9th Ave. East. Lot 70
Palmetto, FL 34221

November 15, 2024

Colonial Manor MHC, Cheryl Peake,
900 9th Avenue East
Palmetto, FL 34221

Subject: Notice of Lease Termination Due to Unsafe Living Conditions

Dear Colonial Manor MHC, & Cheryl Peake- Park Manager,

I hope this letter finds you well. I am writing to formally notify you of my decision to terminate my lease agreement for the property located at 900 9th Ave. East Lot 70 Palmetto, FL 34221. This decision is necessitated by the unsafe and inaccessible conditions caused by Hurricane Milton.

The recent hurricane has rendered the property structurally unsafe, without utilities, or otherwise uninhabitable. These conditions violate the implied warranty of habitability, which is a standard legal requirement for rental properties, and have made it impossible to continue residing safely at the premises.

Per the Florida Statute, Chapter 83.63, I, Sylvia Avalos, am invoking my right to terminate the lease due to these extraordinary circumstances. I vacated the property on October 5, 2024, which was Government Mandated to evacuate which provides 4 weeks' notice in accordance with the terms of our agreement and per verbal discussion. The owner of the property was not able to meet with the residence, instead he spoke with you "3 hours" alone. Therefore, I am confused after the fact of being mislead with the Lot rent. Furthermore, FEMA has noted that this is an unsafe and inaccessible place to residence due to no electricity, mold, unstable foundation, walls are bubbled, window frame and glass are broken, etc. See attached FEMA Letter.

I request that my security deposit to be refunded promptly after I vacate the premises. Please let me know if there are any procedures or inspections required before my departure.

If you would like to discuss this matter further, please feel free to contact me at (941)538-1644. I appreciate your understanding and cooperation during this challenging time.

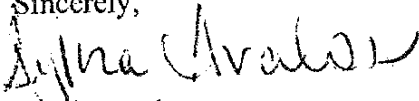
Sincerely,

Sylvia Avalos

Exhibit-A

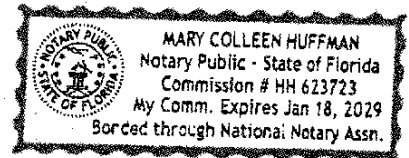
The foregoing Notice of Lease Termination Notice, on the date written above, published and declared by Sylvia Avalos to hereby witness and confirm the Lease of Termination beginning October 5, 2024. We, in his/her presence and at his/her request, and in the presence of each other, have attested to the same and have signed our names as attesting witnesses.

Witness Signature: _____

Name: Colleen Huffman

City: Sarasota

State: Florida



Witness Signature: _____

Name: Sylvia H. Avalos

City: Palmetto

State: Florida

Please read below:

The 2024 Florida Statutes

Title VI
CIVIL PRACTICE AND PROCEDURE

Chapter 83
LANDLORD AND TENANT

CHAPTER 83

83.63 Casualty damage. If the premises are damaged or destroyed other than by the wrongful or negligent acts of the tenant so that the enjoyment of the premises is substantially impaired, the tenant may terminate the rental agreement and immediately vacate the premises. The tenant may vacate the part of the premises rendered unusable by the casualty, in which case the tenant's liability for rent shall be reduced by the fair rental value of that part of the premises damaged or destroyed. If the rental agreement is terminated, the landlord shall comply with s. 83.49(3).

History.—s. 2, ch. 73-330; s. 449, ch. 95-147; s. 14, ch. 2013-136.

SENDER: COMPLETE THIS SECTION

- Complete items 1, 2, and 3.
- Print your name and address on the reverse so that we can return the card to you.
- Attach this card to the back of the mailpiece, or on the front if space permits.

1. Article Addressed to:

Colonial Manor/Office
c/o Cheryl Peake
900 9th Ave. E.
Palmetto, FL 34221



9590 9402 8576 3244 6781 05

2. Article Number (Transfer from service label)

89 0710 5270 2439 0113 95

PS Form 3811, July 2020 PSN 7530-02-000-9053

COMPLETE THIS SECTION ON DELIVERY

- A. Signature**
☒ Agent ☐ Addressee
Cheryl Peake
- B. Received by (Print Name)**
C. Date of Delivery
 11/19/2024
- D. Is delivery address different from item 1? If YES, enter delivery address below:**
☐ Yes ☒ No

- 3. Service Type**
- ☐ Priority Mail Express®
 - ☐ Registered Mail™
 - ☐ Registered Mail Restricted Delivery
 - ☐ Adult Signature
 - ☐ Adult Signature Restricted Delivery
 - ☐ Certified Mail®
 - ☐ Certified Mail Restricted Delivery
 - ☐ Collect on Delivery
 - ☐ Collect on Delivery Restricted Delivery
 - ☐ Insured Mail
 - ☐ Insured Mail Restricted Delivery (over \$500)
- Signature Confirmation™**
☐ Signature Confirmation
☐ Signature Confirmation Restricted Delivery

Domestic Return Receipt

**U.S. Postal Service
CERTIFIED MAIL® RECEIPT
Domestic Mail Only**

For delivery information, visit our website at www.usps.com

Postmark Here

Certified Mail Fee \$4.85

Extra Services & Fees (check box and fee amount)

☐ Return Receipt (hardcopy) \$3.00

☐ Return Receipt (electronic) \$0.00

☐ Certified Mail Restricted Delivery \$40.00

☐ Adult Signature Required \$0.00

☐ Adult Signature Restricted Delivery \$0.00

Postage \$10.45

Total Postage and Fees \$19.40

Sent to

Colonial Manor c/o Cheryl Peake

Street and Apt. No. or Box No.

900 9th Ave. E. (Office)

Palmetto, FL 34221

Exhibit B

EXHIBIT C

Construction Classics, LLC

5651 Bidwell Parkway Sarasota FL 34233

Phone : 941-713-4713 / Email : DSBM1690@aol.com

CGC059328 / HI5511

December 31, 2024, revised 1/18/25.

Sylvia Avalos
900 9th Ave E
Lot 70
Palmetto, FL 34221

RE: Lot 70 at 900 9th Ave E, Palmetto FL 34221

Mrs. Avalos,

On December 27, 2025, an inspection was performed on the home located at Lot 70 at 900 9th Ave E, Palmetto FL 34221. This letter reflects the results of the inspection.

Scope of Work:

The inspection was made to determine the extent of damages to the home from Hurricane Milton and to determine the possibilities of restoring the home to a livable condition with reasonable costs.

Inspection Notes:

Exterior:

Severe damage to the roof, carport, and utility shed. Carport and shed roof are non-existing but remaining parts are on the main roof.

The home has shifted and sunk on to the left side. It has severe damage to the existing tie-down system.

Several windows were destroyed.

Exterior walls show signs of buckling.

Interior:

Massive water intrusion throughout the home on the ceilings, walls, and flooring. Many areas of the ceiling are failing and are sagging. This would also conclude that the insulation has been water damaged in both the ceilings, walls and underneath the home. Most walls are showing signs of warping and starting to separate from structure. Some areas have already separated. The flooring throughout is showing signs of buckling. The kitchen and bath have severe signs of damage.

Utilities

The electric is not in service at this time, but it must be concluded that it has been compromised and unsafe.

All wall air conditioning units have signs of water intrusion and must be concluded that they have been compromised and unsafe.

The heating unit has signs of water damage as well and must be concluded that it has been compromised and unsafe.

The water heater has signs of water damage as well and must be concluded that it has been compromised and unsafe.

The plumbing could not be evaluated but could be compromised as well from the house shifting.

Exhibit C

Conclusions:

Given the age of this home and the codes that applied at the time of its construction compared to today's standards, I would recommend that this home be demolished.

Any work to restore this home would be futile, both in construction standards and in reasonable costs. This home would need to be replaced. There is no reasonable way this home could be brought to any livable and viable standards without replacement.

The estimated cost to replace this home would be 44,000.00 to 65,000.00.

Typical cost Breakdown:

Demolition of existing: 6500.00

Grading and Preparation: 4000.00

Plumbing sewer and water connections: 3000.00

HVAC, unit, and ductwork: 4500.00

Electric connection: 3000.00

Complete single wide manufactured home as built by manufacturer, inclusive of roof, ceilings, walls, flooring, windows, siding, doors, trim, bath, kitchen, etc.: 44,000.00

Notes:

This inspection was performed on this home to provide you information to help you. The inspection of the home was done on your behalf and for your best interests in mind.

Please note that the inspection was performed with professional standards by a state licensed inspector. There is no affiliation or implied affiliation to the owner of the home, realtor, adjuster, or insurance company. Any unforeseen issues that could not be seen or determined in this home are not the responsibility of the inspector or Construction Classics LLC. It is assumed that the home was designed by a state licensed engineer or architect and was constructed by a licensed state contractor. Please be advised that neither the Inspector nor Construction Classics LLC can be held responsible for any poor design or substandard building practices performed by such entities. The home is presumed to be built under the state of Florida building codes applicable at time of construction and approved by the local building department with inspection and certifications.

If you have any questions, please feel free to contact me for further explanation.

Regards,

Mark McCourt

Mark McCourt

President, Construction Classics LLC

EXHIBIT D

Sylvia Avalos

900 9th Ave. East Lot # 70

Palmetto, Florida 34221

(941)538-1644

January 03, 2025/ Legible Copy typed/ Note: Original Copy handwritten not legible

Reg. # 635664856

Subject: Appeal for Additional Repair Assistance – Hurricane Milton

Dear FEMA Representative,

I hope this letter finds you well. My name is Sylvia Avalos, and I would like to express my sincere gratitude for the assistance FEMA has provided following the devastation caused by Hurricane Milton. Your support has been invaluable to me and my disabled spouse during this difficult time.

I am writing to formally appeal the repair funds awarded in October 2024. Unfortunately, the amount provided is insufficient to cover the necessary repairs required to make our home safe, livable, and accessible. Given the extent of the damage, additional funds are crucial for ensuring that our home meets the needs of my disabled spouse and myself.

Furthermore, as my husband does not currently receive assistance from disability or SSI, our financial situation makes it extremely challenging to complete these repairs on our own. I am kindly requesting additional assistance to either complete the necessary repairs or to relocate to a safe and accessible home.

Thank you for your time, consideration, and continued support. I greatly appreciate any further assistance FEMA can provide to help us rebuild and secure a safe living environment. Please let me know if any additional information or documentation is please see the Contactor's report to process this appeal.

Sincerely,

Sylvia Avalos

Exhibit D-2